

25NWLC32219 25NWLC32219

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-09-03

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Case Number: 25NWLC32219 Hearing Date: September 3, 2026 Dept: Y

25NWLC32219: CAPITAL ONE N.A. vs CHRISTIAN PALOMARES

Tentative Ruling:

Plaintiff Capital One, N.A.'s ("Plaintiff") Motion to Vacate Dismissal and Enter Judgment Under Terms of Stipulated Settlement ("Motion") was initially set for hearing on July 31, 2026. The Court continued the hearing to September 3, 2026 so that proper notice of the Motion could be given to Defendant and to allow a substantive opposition to be filed by Defendant, if necessary. No substantive opposition has been filed by Defendant.

The Court has read and considered the moving papers filed by Plaintiff. The Court takes judicial notice of the Stipulation Agreement; Jurisdiction Retained Under Code of Civil Procedure Section 664.6 signed by Defendant on April 6, 2026 and filed with the Court on May 1, 2026. The Court also takes judicial notice of the Order on Settlement Agreement and Stipulation for Judgment entered by the Court on May 20, 2026.

The Court notes that Plaintiff has advised that Defendant has made payments totaling \$730.00, leaving an outstanding amount of \$21,085.80 due and owing.

Based on the Stipulation signed by the parties and the moving papers submitted by Plaintiff, Plaintiff's motion is GRANTED.

The Order Dismissing this action pursuant to Code of Civil Procedure section 664.6 is set aside. Judgment is hereby entered in favor of Plaintiff Capital One, N.A. and against Defendant Christian Palomares for the principal sum of \$21,085.80 plus court costs of \$523.61, for a total judgment of \$21,609.41.

The Proposed Judgment will be signed by the Court.

Plaintiff to give notice.